

26STCV08941 26STCV08941

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Case Number: 26STCV08941 Hearing Date: July 10, 2026 Dept: 14

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

DEPARTMENT 14

JANET LARKLY,

Plaintiff,

v.

ALBERTSONS COMPANIES, INC., et al.,

Defendants.

Case No. 26STCV08941

Hearing Date: July 10, 2026

Time:

9:00 a.m.

¿ [TENTATIVE] ORDER

RE:¿

SPECIALLY APPEARING DEFENDANTS PTI MISSOURI,
LLC, PTI GEORGIA, LLC, PTI UNION, LLC, AND PTI ROYSTON, LLC'S MOTIONS TO
QUASH SERVICE OF SUMMONS AND COMPLAINT FOR LACK OF
PERSONAL JURISDICTION

I.

Background

On April 30, 2026, Plaintiff Janet Larkly filed her first amended complaint for personal injury alleging she developed mesothelioma from familial and personal use of asbestos-containing talcum powder products throughout her lifetime, including personal use of cosmetic products starting in high school and her mother's use of powder products on her brother and herself starting from infancy. Plaintiff also alleges she was exposed to asbestos-containing materials while at jobsites due to their presence and use by other contractors. As against specially appearing Defendants PTI Missouri, LLC ("PTI Missouri"), PTI Georgia, LLC ("PTI Georgia"), PTI Union, LLC ("PTI Union"), and PTI Royston, LLC ("PTI Royston") (collectively, "PTI"), Plaintiff alleges the PTI entities manufactured and packaged talc products, including Dr. Scholl's, Gold Bond, and Johnson's baby powder which Plaintiff used from 1950 to the present.

On April 30, 2026, the PTI entities each filed motions to quash service of summons, arguing the court does not have specific jurisdiction over PTI. PTI argues PTI Union and PTI Royston did not purposefully avail themselves of the California market because they blended and bottled products for various product owners without directing their services to California residents. PTI argues PTI Georgia and PTI Missouri never manufactured any branded talc-containing products and never directed their services to California residents.

On June 1, 2026, Plaintiff opposed, arguing the allegations in the complaint that PTI manufactured talc products to which she was exposed in California constitute a prima facie showing that the court has specific jurisdiction over these entities. Alternatively, Plaintiff requests that the court continue this matter and grant leave to perform jurisdictional discovery.

On July 2, 2026, PTI replied, arguing that Plaintiff failed to meet her burden to prove facts justifying the exercise of personal jurisdiction over the PTI entities.

Plaintiff

failed to present sufficient evidence to show that the PTI entities purposefully availed themselves of the California market. However, the court exercises its discretion to allow Plaintiff to conduct jurisdictional discovery. Therefore, the PTI entities' motions are continued to Thursday, August 27, 2026. Plaintiff is ordered to give notice.

II.

Discussion

A.

Legal Standard

A defendant may move to quash service of summons on the ground of lack of jurisdiction of the court over them. (Code Civ. Proc., § 418.10, subd. (a)(1).) The court may dismiss without prejudice the complaint in whole, or as to that defendant, when dismissal is made pursuant to Section 418.10. (Code Civ. Proc., § 581, subd. (h).) 22

2

"A court of this state may exercise jurisdiction on any basis not inconsistent with the Constitution of this state or of the United States." (Code Civ. Proc., § 410.10.) "The Due Process Clause protects an individual's liberty interest in not being subject to the binding judgments of a forum with which he has established no meaningful 'contacts, ties, or relations.'" (Burger King Corp. v. Rudzewicz (1985) 471 U.S. 462, 471 – 472.) A state court may not exercise personal jurisdiction over a party under circumstances that would

offend "traditional notions of fair play and substantial justice." (Asahi Metal Industry Co., Ltd., v. Superior Court of California, Solano County (1987) 480 U.S. 102, 113.)

When a defendant moves to quash service of process on jurisdictional grounds, the plaintiff has the initial burden of demonstrating facts justifying the exercise of jurisdiction. (Jayone Foods, Inc. v. Aekyung Industrial Co. Ltd. (2019) 31 Cal.App.5th 543, 553.) Once facts showing minimum contacts with the forum state are established, the defendant has the burden to demonstrate the exercise of jurisdiction would be unreasonable. (Ibid.) "The plaintiff must provide specific evidentiary facts, through affidavits and other authenticated documents, sufficient to allow the court to independently conclude whether jurisdiction is appropriate. [Citation.] The plaintiff cannot rely on allegations in an unverified complaint or vague and conclusory assertions of ultimate facts. [Citation.]" (Strasner, supra, 5 Cal.App.5th at p. 222.)

A defendant is subject to a state's general jurisdiction if its contacts "are so continuous and systematic as to render [it] essentially at home in the forum State." (Daimler AG v. Bauman (2014) 571 U.S. 117, 127.) A nonresident defendant may be subject to the specific jurisdiction of the forum "if the defendant has purposefully availed himself or herself of forum benefits [citation], and the 'controversy is related to or 'arises out of' a defendant's contacts with the forum.' [Citations.]" (Vons Companies, Inc. v. Seabest Foods, Inc. (1996) 14 Cal.4th 434, 446.) This test does not require a "causal relationship between the defendant's in-state activity and the litigation." (Ford Motor Co. v. Montana Eighth Judicial District Court (2021) 592 U.S. 351, 362) The "arise out" of standard "asks about causation," but "relate to" does not. (Ibid.) "[W]hen a corporation has 'continuously and deliberately exploited [a State's] market, it must reasonably anticipate being haled into [that State's] court[s]' to defend actions 'based on' products causing injury

there." (Id. at p. 364.)

General Jurisdiction

i. Legal Standard

General jurisdiction over a corporate defendant exists when the corporation's "affiliations with the State are so 'continuous and systematic' as to render it essentially at home in the forum State." (Daimler, supra, 571 U.S. at p. 139.) The paradigmatic examples of these affiliations are the locations where the defendant is incorporated and of the defendant's principal place of business. (Daimler, supra, 571 U.S. 117, at p. 137.)

ii. Parties' arguments and evidence

Plaintiff argues that the court has general jurisdiction over the PTI entities because she alleges in her complaint that the PTI entities "are authorized to do and are doing business in the State of California; have regularly conducted business in Los Angeles, California; and Courts of the State of California have personal jurisdiction over" them. (Motions at p.6.) Plaintiff points to Code of Civil Procedure, § 410.10, which provides that a court of this state "may exercise jurisdiction on any basis not inconsistent with the Constitution of this state or of the United States," and argues that the authorization of a public official to accept service of process in actions brought against it means that the corporation consented to judicial jurisdiction over it. (Motions at p.5.) Plaintiff relies on a judicial comment on the statute, which states that "in order to qualify for doing intrastate business in this state, a foreign corporation must designate an agent for service of process and give its consent to service on the Secretary of State if the agent cannot be found with reasonable diligence." (Id.) Plaintiff cites *Mallory v. Norfolk Southern Railway Co.* (2023) 600 U.S. 122 in support of this argument. There, the court found personal jurisdiction based on a Pennsylvania statute that required out-of-state corporations to consent to personal jurisdiction in Pennsylvania if those corporations were registered to do business in the state. (Id. at 146.)

In reply, the PTI entities argue that there is no basis for general jurisdiction because the Pennsylvania law discussed in *Mallory* is not

comparable to Code of Civil Procedure section 410.10 as Plaintiff contends. (Replies at p.2.) The PTI entities each rely on a declaration from Edward Noland, who serves as a manager of each entity. Mr. Noland declares that PTI Missouri is incorporated in Delaware with its principal place of business in Georgia; PTI Union is incorporated in North Carolina with its principal place of business in Missouri; PTI Royston is incorporated in Delaware with its principal place of business in Georgia; and that PTI Georgia is incorporated in Delaware with its principal place of business in Georgia. (Noland Missouri Decl. at ¶3, Noland Union Decl. at ¶¶3-4, Noland Royston Decl. at ¶3, Noland Georgia Decl. at ¶3.)

Mr. Noland also declares the following:

PTI Missouri

PTI Missouri became a subsidiary of PTI Union after a divisional merger on August 15, 2024. (Noland Missouri Decl. at ¶¶4-5.) PTI Missouri did not assume assets or liabilities related to talc litigation involving PTI Union, LLC. (Id. at ¶6.) PTI Missouri did not design, sell, blend, bottle, own, distribute, label, release, or market any branded talc-containing products. (Id. at ¶¶7-8.) PTI Missouri has never maintained an office, had agent or representative authorized to accept service of process, or owned or leased property in California. (Id. at ¶¶9-10.)

PTI Georgia

PTI Georgia became a subsidiary of PTI Union after a divisional merger on August 15, 2024. (Noland Georgia Decl. at ¶¶6-7.) PTI Georgia did not assume assets or liabilities related to talc litigation involving PTI Union, LLC. (Id. at ¶8.) PTI Georgia did not design, sell, blend, bottle, own, distribute, label, release, or market any branded talc-containing products. (Id. at ¶¶4-5.) PTI Georgia has never maintained an office, had agent or representative authorized to accept service of process, or owned or leased property in California. (Id. at ¶¶9-10.)

PTI Union

The owners of the Gold Bond and Dr. Scholl's brand talc products contracted with PTI Union to blend and package their products in Missouri. (Noland Union Decl. at ¶¶5-10.) These product

owners provided product formulations and specifications, designated suppliers, controlled the content and design of labelling, controlled shipment of their products, controlled where the products were shipped, and determined their own distribution and marketing. (Id. at ¶¶11-16.) The product owners tested their own products to ensure compliance with the laws of any particular state where they intended to sell their products. (Id. at ¶16.) PTI Union's revenue from blending and bottling services was not contingent on the sale of these products in any particular state, including California. (Id. at ¶19.) PTI Union's contracts with the product owners required PTI Union to comply with the laws and regulations of the United States and, specifically, the rules and regulations promulgated by the FDA and EPA applicable to PTI Union's blending and bottling operations. (Id. at ¶21.) PTI Union also understood its contractual agreements to require it to comply with the state and local laws where it operated in Union, Missouri. (Id. at ¶2.) PTI Union has never maintained an office, had agent or representative authorized to accept service of process, or owned or leased property in California. (Id. at ¶¶23-24.)

PTI Royston

The owners of the Shower to Shower and Johnson's brand talc products contracted with PTI Royston to blend and package their products in Georgia. (Noland Royston Decl. at ¶¶4-7.) These product owners provided product formulations and specifications, designated suppliers, controlled the content and design of labelling, controlled shipment of their products, controlled where the products were shipped, and determined their own distribution and marketing. (Id. at ¶¶8-12.) The product owners tested their own products to ensure compliance with the laws of any particular state where they intended to sell their products. (Id. at ¶13.) PTI Royston's revenue from blending and bottling services was not contingent on the sale of these products in any particular state, including California. (Id. at ¶14.) PTI Royston has never maintained an office, had agent or representative authorized to accept service of process, or owned or leased property in California. (Id. at ¶¶15-16.)

iii. Analysis

Plaintiff fails to meet her burden to prove that the court has general jurisdiction over the PTI entities. The undisputed evidence establishes that the PTI entities have never had agents or

representatives authorized to accept service of process in California. (Noland Georgia Decl. at ¶¶ 9-10, Noland Missouri Decl. at ¶¶9-10, Noland Union Decl. at ¶¶23-24, Noland Royston Decl. at ¶¶15-16.) Unlike in Mallory, there is no evidence that the PTI entities registered to do business in California or authorized any agent or representative to accept service of process in California. Regardless of the allegations of the complaint, it is Plaintiff's burden to provide evidence that the PTI entities are subject to the court's general jurisdiction. Plaintiff fails to submit any evidence in the opposition to support their contention that the PTI entities designated an agent for service in California and consequently consented to judicial jurisdiction in California. Accordingly, Plaintiff's argument that the court has general jurisdiction over the PTI entities is without merit.

C.

Specific

Jurisdiction

A court may exercise specific jurisdiction over a plaintiff when three elements are satisfied: "(1) 'the defendant has purposefully availed himself or herself of forum benefits' [citation]; (2) 'the controversy is related to or "arises out of" [the] defendant's contacts with the forum' [citation]; and (3) " 'the assertion of personal jurisdiction would comport with 'fair play and substantial justice' " [citation.]" (Pavlovich v. Superior Court (2002) 29 Cal.4th 262, 269.)

Where specific jurisdiction is based on a "stream of commerce" theory the "purposeful availment" requirement is not satisfied by the mere fact that the defendant placed the product into the stream of commerce. In J. McIntyre Machinery, Ltd. v. Nicastro (2011) 564 U.S. 873, 882-883, the U.S. Supreme Court addressed the question of whether in "stream of commerce" cases, the "purposeful availment" requirement for specific jurisdiction could be satisfied by a showing that a foreign manufacturer placed the goods into commerce "with the expectation that they will be purchased by consumers in the forum State," ("injection into the stream of commerce" or "foreseeability" that the product would be sold in the forum state) or if "purposeful availment" required such "stream of commerce plus" other activities by a foreign defendant directed at the forum State. (See J. McIntyre Machinery, Ltd. v. Nicastro (2011)

564 U.S. 873, 882-883.)

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McIntyre Court resolved the conflict in favor of the

“stream of commerce plus” position articulated in *Asahi Metal Industry Co. v. Superior Court* (1987) 480 U.S. 102: “This Court’s precedents make clear that it is the defendant’s actions, not his expectations, that empower a State’s courts to subject him to judgment.” (J. McIntyre, *supra*, 564 U.S. at pg. 883.)

1.

Purposeful

Availment

i. Parties’
arguments

Purposeful

availment “focuses on the defendant’s intentionality. This prong is satisfied when the defendant purposefully and voluntarily directs his activities toward the forum so that he should expect, by virtue of the benefit he receives, to be subject to the court’s jurisdiction based on his contacts with the forum.” (Pavlovich, *supra*, 29 Cal.4th at p.

269.) “California courts have consistently concluded that a foreign corporation purposefully avails itself of the benefits of the California forum when it knowingly sells and ships its products to California businesses for use in California.” (*LG Chem, Ltd. v. Superior Court of San Diego County* (2022) 80 Cal.App.5th 348, 363.)

Plaintiffs argue

that the allegations in the complaint that the PTI entities “manufactured the talcum powder and cosmetic products to which she was exposed through her in California” are sufficient to show that the PTI entities are subject to specific jurisdiction in California. (Union opp. at p.6, Georgia opp. at p.6, Royston opp. at p.6, Missouri opp. at p.6.) Plaintiffs, citing *Jayone Foods, Inc. v. Aekyung Industrial Co. Ltd.* (2019) 31 Cal.App.5th 543 (*Jayone*), argues that the PTI entities’ lack of control in the distribution of its products “does not negate purposeful availment where [PTI] and its predecessors manufactured, bottled, and affixed labels for

branded talc goods destined for nationwide consumer sale, including California nor does it preclude a finding of specific jurisdiction. [PTI] fails to address whether it knew that the products at issue in this case (or any other products it and its predecessors manufactured) were to be sold in California.” (Motions at p.9.)

In reply, PTI argues that Plaintiff’s opposition never discusses whether the PTI entities purposefully availed itself of the California market but instead discusses relatedness. (Replies at p.4.)

ii. Analysis

Plaintiff fails to meet her burden to prove that the PTI entities purposefully availed themselves of the California market. Plaintiff points to allegations from the complaint and fails to present evidence that the PTI entities placed their products in the stream of commerce expecting them to be sold in California and purposefully directed activities at California. However, it is Plaintiff’s burden to present evidence that the PTI entities purposefully availed themselves of the California. Under the stream of commerce plus theory, Plaintiffs were required to show not only that the PTI entities placed their products into the stream of commerce, but also that they directed activities toward the California market. (J. McIntyre, supra, 564 U.S. at pg. 883.) As discussed, Mr. Noland declares that PTI Georgia and PTI Missouri never manufactured or distributed talc products talc-containing products. (Noland Georgia and Missouri Declarations at ¶¶4-5.) As for PTI Union and PTI Royston, Mr. Noland declares that those entities blended and packaged talc products for various product owners but had no control over the products’ marketing, distribution, or formulation. (Noland Union Decl. at ¶¶ 11-16, Noland Royston Decl. at ¶¶ 8-13.) PTI’s evidence establishes that it only blended and bottled the talc products for various product owners and had no control over the products’ formulation, marketing, and distribution. It is reasonable to infer from these declarations that PTI did not direct any activities toward California because it was only responsible for blending and bottling these products. Plaintiff objects to Mr. Noland’s declaration on the grounds that it lacks foundation and fails to lay the foundation for Mr. Noland’s personal knowledge of the facts stated in the declaration. However, even if Mr. Noland’s declaration lacks foundation, it is Plaintiff’s burden to show that the PTI entities are subject to this court’s jurisdiction. Plaintiff submitted no evidence with her opposition to meet this

burden.

Instead of presenting

evidence that the PTI entities directed activities toward the California market, Plaintiff relies on Jayone to argue that the court may exercise specific jurisdiction over the PTI entities despite PTI having no knowledge of where the products it manufactured were distributed. As PTI points out in reply, Jayone is distinguishable because the defendant there “sold thousands of units of its products in directly to California distributors, regularly communicated with those distributors, and generated more than half of its total U.S. revenue in California,” meaning the defendant there directed its activities toward the California market by seeking out California distributors. (Replies at p.5.) Plaintiff fails to show that similar facts exist here.

Accordingly, the

evidence before the court is currently insufficient to show that PTI purposefully availed itself of the California market.

D. Jurisdictional Discovery

A plaintiff

attempting to assert jurisdiction over a nonresident defendant is entitled to an opportunity to conduct discovery of the jurisdictional facts necessary to sustain its burden of proof[.]” (Hardell v. Vanzyl (2024) 102 Cal.App.5th 960, 975-976; Goehring v. Superior Court (Bernier) (1998) 62 Cal.App.4th 894.) The court has “discretion to continue the hearing on a motion to quash service of summons for lack of personal jurisdiction to allow the plaintiff to conduct discovery on jurisdictional issues.” (HealthMarkets, Inc. v. Superior Court (2009) 171 Cal.App.4th 1160, 1173.) However, “In order to prevail on a motion for a continuance for jurisdictional discovery, the plaintiff should demonstrate that discovery is likely to lead to the production of evidence of facts establishing jurisdiction.” (In re Automobile Antitrust Cases I & II (2005) 135 Cal.App.4th 100, 127.)

Plaintiff

alternatively requests that the court continue this matter to allow her to conduct jurisdictional discovery. Plaintiff argues that Mr. Noland’s declaration fails to address many factors which may establish specific jurisdiction. (Oppositions at p. 10.)

In reply, PTI

argues that jurisdictional discovery is unjustified: "Plaintiff fails to demonstrate that the discovery she proposes is likely to lead to evidence of facts establishing jurisdiction over PTI Missouri. In any event, the uncontradicted evidence already before the Court conclusively refutes the jurisdictional facts Plaintiff wishes to 'discover.'"

The

court exercises its discretion to allow Plaintiff to conduct jurisdictional discovery because some of the proposed discovery, such as whether PTI sold its products to California companies or entities, could lead to evidence establishing specific jurisdiction over PTI. Accordingly, the request for jurisdictional discovery is granted.

III.

Conclusion

Plaintiff

failed to present sufficient evidence to show that the PTI entities purposefully availed themselves of the California market. However, the court exercises its discretion to allow Plaintiff to conduct jurisdictional discovery. Therefore, the PTI entities' motions are continued to Thursday, August 27, 2026 at 9:00 a.m. Plaintiff is ordered to give notice.